

# SOFTWARE LICENSE AND SERVICES AGREEMENT (SaaS)

**LICENSOR/SERVICE PROVIDER:** GEDEAN JOHN ASSESSORIA E CONSULTORIA EMPRESARIAL LTDA, a company duly registered under Brazilian CNPJ (National Register of Legal Entities) No. 43.391.734/0001-51, with registered office at Rua Dinamarca, nº 689, apto 10, Jardim Europa, Goiânia/GO, Brazil, ZIP Code 74330-050, herein represented, pursuant to its bylaws, by GEDEAN JOHN GAZOLA, Managing Partner, Brazilian taxpayer ID (CPF) 028.918.094-59, hereinafter referred to simply as SERVICE PROVIDER.

**CLIENT:** \_\_\_\_\_, the brand/business responsible for the operation at [your-address].zaieze.com, herein represented by its manager, \_\_\_\_\_, e-mail \_\_\_\_\_, hereinafter referred to simply as CLIENT.

The parties qualified above have mutually agreed to enter into this Software License and Software-as-a-Service (SaaS) Agreement, which shall be governed by the clauses and conditions set forth below.

*Note: This Agreement is governed by the laws of the Federative Republic of Brazil. This English version is provided for the CLIENT's convenience only; in the event of any conflict or discrepancy, the original Portuguese-language version shall prevail.*

## SECTION 1 — SUBJECT MATTER

1.1. This Agreement has as its subject matter the grant, by the SERVICE PROVIDER, of a non-exclusive, non-transferable license to use the Zaieze Sistemas Inteligentes para a Moda platform — a sales management, customer relationship (CRM), WhatsApp customer service, inventory, and catalog/Customer Portal system —, hosted and made available to the CLIENT on its own dedicated environment ([your-address].zaieze.com).

1.2. The modules and features available vary according to the plan contracted (START, PRO, or ELITE). The SERVICE PROVIDER renders a technology service and makes the platform available, without participating in, intermediating, or assuming any responsibility for the sales, negotiations, deliveries, or payments carried out between the CLIENT and its own customers.

## SECTION 2 — MANNER OF SERVICE DELIVERY

2.1. The services are provided entirely online. The CLIENT accesses a management dashboard to operate its stores, salespeople, inventory, and service channels, available for as long as this Agreement remains in force and the CLIENT's account remains in good standing.

2.2. The SERVICE PROVIDER shall use its best efforts to keep the platform available, and may carry out scheduled maintenance and occasional technical interruptions, none of which shall constitute a breach of this Agreement.

## **SECTION 3 — PRICE AND PAYMENT TERMS**

3.1. In consideration for the license and services, the CLIENT shall pay the SERVICE PROVIDER the monthly amount corresponding to the contracted plan, through the payment provider integrated into the platform (Mercado Pago), on a recurring billing basis.

3.2. Payment is made in advance, and renewal is automatic every 30 (thirty) days, unless cancelled. Failure to pay authorizes the suspension of access until the account is brought current.

3.3. Fees may be adjusted by the SERVICE PROVIDER upon prior notice to the CLIENT, who may terminate this Agreement if it does not agree with the new amount.

## **SECTION 4 — TERM**

4.1. This Agreement is effective for an indefinite term, in monthly cycles, commencing on the date of electronic acceptance and confirmation of the first payment, and shall automatically renew each period for as long as the CLIENT's account remains in good standing and is not cancelled by either party.

## **SECTION 5 — CANCELLATION AND TERMINATION**

5.1. The CLIENT may cancel the service at any time, directly through the platform dashboard. Under the end-of-cycle policy adopted, access remains available until the end of the monthly period already paid for, with subsequent renewals ceasing thereafter, without any right to a refund of the period in progress.

5.2. The SERVICE PROVIDER may terminate this Agreement in the event of non-payment, misuse of the platform, or publication of unlawful content or content that violates these terms, by deactivating access.

5.3. The SERVICE PROVIDER may amend the terms of this Agreement, including rules of conduct and content, upon notice to the CLIENT and a request for a new electronic acceptance. If such re-acceptance is not given within 30 (thirty) days of the notice, this Agreement shall be deemed automatically terminated by operation of law, the automatic renewal of billing shall cease, and access to the platform shall end upon expiration of the subscription period already paid for, without any right to a refund, with data being preserved for the periods required by law.

## **SECTION 6 — OBLIGATIONS OF THE SERVICE PROVIDER**

6.1. To make the platform and management dashboard available in accordance with the contracted plan; to use reasonable efforts to keep the service operational; to provide support through the channels indicated; and to process personal data in accordance with applicable law.

## **SECTION 7 — OBLIGATIONS OF THE CLIENT**

7.1. To provide truthful information and keep it up to date; to use the platform lawfully; to be solely responsible for the content (text, images, products, offers, prices, and messages) that it publishes or sends through the platform; to respect the rights of third parties; to obtain its customers' consent for sending messages; and to make payments on time.

7.2. The CLIENT represents and warrants that the products advertised and sold are lawful and of legitimate origin, assuming full and exclusive civil, administrative, and criminal liability for their origin and sale.

## **SECTION 8 — PROHIBITED CONTENT AND CONDUCT**

8.1. The CLIENT is expressly prohibited from publishing, disseminating, displaying, storing, or sending, through the platform or the channels linked to it (catalog, Customer Portal, WhatsApp, and related channels), any advertisement, image, video, audio, or text of a sexual, pornographic, erotic, or suggestive nature,

whether explicit or implicit, involving adults, as well as offering, brokering, or advertising services of a sexual nature.

8.2. It is strictly forbidden, as it constitutes a criminal offense, to publish, transmit, or disseminate any content that involves, depicts, displays, suggests, simulates, or exploits a child or adolescent (a person under 18 years of age) in a sexual, erotic, or pornographic context, scene, or situation, even if implicit, simulated, or through image manipulation, pursuant to Brazilian Federal Law No. 8,069/1990 (the Child and Adolescent Statute).

8.3. The verification of any of the conduct prohibited under this Section shall give rise to the immediate deactivation of access and termination of this Agreement for cause, regardless of prior notice and without any right to a refund, without prejudice to reporting the matter to the competent authorities and to the CLIENT's exclusive civil and criminal liability; the CLIENT undertakes to hold harmless and indemnify the SERVICE PROVIDER for any damages, losses, fines, or claims arising therefrom.

## **SECTION 9 — DATA PROTECTION (LGPD)**

9.1. The parties undertake to process personal data in accordance with Brazilian Federal Law No. 13,709/2018 (the Brazilian General Data Protection Law — LGPD). With respect to the end-customer data entered by the CLIENT, the CLIENT acts as the data CONTROLLER and the SERVICE PROVIDER as the data PROCESSOR, processing such data exclusively to perform this Agreement and in accordance with the CLIENT's instructions.

9.2. The CLIENT is responsible for having a valid legal basis for processing data and for sending communications to its customers.

## **SECTION 10 — INTELLECTUAL PROPERTY**

10.1. The platform, brand, layout, and software of the SERVICE PROVIDER are its exclusive property, with only the license to use granted herein being conveyed to the CLIENT. Content and data entered by the CLIENT remain its own property.

## **SECTION 11 — ELECTRONIC ACCEPTANCE**

11.1. The parties acknowledge the validity and legal effect of the electronic acceptance of this Agreement, given by the CLIENT, through its manager, by means of an affirmative action on the platform ("I have read and accept"), with the date, time, and IP address recorded, pursuant to Article 10, Paragraph 2, of Brazilian Provisional Measure No. 2,200-2/2001, physical signature being waived.

## **SECTION 12 — GOVERNING LAW AND VENUE**

12.1. The parties elect the courts of the Judicial District (Comarca) of Goiânia, State of Goiás, Brazil, to settle any questions or disputes arising from this Agreement, waiving any other venue, however privileged it may be.

Version 1.0-2026-06 (English convenience translation of the Portuguese original)